

AMIN v. VANDENBERG et al

20CV44940

DEFENDANTS' DEMURRER TO THREE CAUSES OF ACTION

This is a personal injury action involving a dog bite from an unleashed dog roaming free within a privately fenced area at the Frogtown RV park. According to plaintiff, as she was walking past defendants' space, their large dog leaned onto their flimsy fence, reaching plaintiff for the bite. Before the Court this day is a demurrer by co-defendant State of California/39th District Agricultural Association (hereinafter "CA-DAA") to plaintiff's Second (negligence), Fourth (dangerous condition of public property) and Fifth (premises liability) causes of action set forth in the operative First Amended Complaint. According to defendant, the Second and Fifth causes of action are displaced by Govt. Code §815, and plaintiff failed to exhaust administrative remedies to preserve the Fourth cause of action.

Second and Fifth Causes of Action

Generally, each person has a duty to use ordinary care and is liable for injuries caused by a failure to exercise reasonable care under the circumstances. Civil Code §1714. However, public entities can only be held liable for negligence if a statute specifically provides for such. (Gov. Code §815; *Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, 803-804 [no common law negligence against public entities].) To adequately state a cause of action against a public entity, the pleader must set forth ultimate facts with particularity, averring "every fact material to the existence of its statutory liability." (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795; *City of Los Angeles v. Superior Court* (2021) 62 Cal.App.5th 129, 138.) This detail requires, at a minimum, that the pleader identify the precise statute or regulation creating the basis for liability. (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1458; *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.)

In opposition to the demurrer, plaintiff identifies Gov. Code §815.4 as the statutory predicate for the Second and Fifth causes of action. Since the predicate statute must be pled in the operative pleading, on that ground alone the demurrer must be sustained.

In addition, the facts alleged are insufficient to state the claim. A public entity is vicariously liable for the negligence of its independent contractor "to the same extent that the public entity would be subject to such liability if it were a private person," and only so long as the public entity would have been liable for the injury had the act or omission been that of an employee. A private person may be vicariously liable for the acts of an independent contractor if that contractor negligently performed a

nondelegable duty. (See *Schreiber v. Lee* (2020) 47 Cal.App.5th 745, 755-756; *Koepnick v. Kashiwa Fudosan America, Inc.* (2009) 173 Cal.App.4th 32, 36-38; *Srithong v. Total Investment Co.* (1994) 23 Cal.App.4th 721, 726-727; *Jordy v. County of Humboldt* (1992) 11 Cal.App.4th 735, 742.) A public employer is only liable for the negligence of an employee if the tort was committed in the foreseeable course and scope of their work and for which a duty under the Government Claims Act exists. (See Govt. Code §815.2; *State of Calif. ex rel. Dept. of Calif. Highway Patrol v. Superior Court* (2015) 60 Cal.4th 1002, 1009; *Yee v. Superior Court* (2019) 31 Cal.App.5th 26, 39-40.)

Unlike a private landowner, whose duty of care might extend to conditions unknown, a public entity is only responsible for conditions which create substantial (as distinguished from a minor, trivial or insignificant) risk of injury when used with due care (see Govt. Code §830(a)), and only for those conditions which was created by an employee within the scope of his or her public employment, or which the entity had actual or constructive notice of the condition sufficiently before the injury to have taken measures to protect against the risk involved, including repair, warnings, or safeguards. (See, e.g., *Thimon v. City of Newark* (2020) 44 Cal.App.5th 745, 753-754 [crosswalk with no signals]; *Hedayatzadeh v. City of Del Mar* (2020) 44 Cal.App.5th 555, 561-568 [lack of pedestrian barriers]; *Huerta v. City of Santa Ana* (2019) 39 Cal.App.5th 41, 48-51 [poor lighting]; *Fuller v. Department of Transp.* (2019) 38 Cal.App.5th 1034, 1042-1043 [narrow roadway].) Pursuant to Govt. Code §835.2(b), a public entity has constructive notice of a dangerous condition “only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” Finally, there is no liability just because a condition is visible and nontrivial; otherwise, “the constructive notice element would be automatically satisfied in every instance where that dangerous condition preexisted the accident and thus would effectively write the negligence element out of the statute.” (*Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 520.)

If the above sounds familiar, that is because these are the essential elements for a statutory Govt. Code §§ 830(a) and 835 claim for dangerous condition of public property – i.e., plaintiff’s Fourth cause of action. To drive a further point on the topic, the idea that an independent contractor’s negligence might be imputed to a public entity for failing to remove a dangerous condition on public property only attaches consistent with Govt. Code §840.2 – which plaintiff has not alleged either. In conclusion, the proposed Second cause of action for vicarious liability is really no different than the Fourth cause of action, and the Fifth cause of action is entirely duplicative of the Second and Fourth.

Demurrer to Second cause of action SUSTAINED with 20 days leave to amend.

Demurrer to Fifth cause of action is SUSTAINED WITHOUT LEAVE to amend (see *Dickinson v. Cosby* (2017) 17 Cal.App.5th 655, 692; *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290).

Fourth Cause of Action

Plaintiff's fourth cause of action is for dangerous condition of public property. Defendant does not take issue with the allegations pled. Instead, defendant contends that plaintiff has not exhausted the prefiling notice requirement because there is no reference to the flimsy gate as being the real problem. First, the flimsy gate is merely a symptom of the problem of not requiring dogs to be tethered. It is not, as defendant contends, the crux of the case since a strong gate would have been unnecessary had the dog been tethered. Second, the test for prefiling notice is substantial compliance, not perfection.

The GCA claim must be in writing and must show (1) the name and address of the claimant; (2) the date and place of the accident or event out of which the claim arose; (3) a general description of the damage, loss or indebtedness incurred; (4) the names of any public employees allegedly responsible; and (5) the amount of the claim if under \$10,000. The test is whether sufficient information is disclosed to enable a public entity to investigate and evaluate the claim to determine whether settlement is appropriate. See Govt. Code §910; *Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1234; *Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 39; *Poway Unified School Dist. v. Superior Court* (1998) 62 Cal.App.4th 1496, 1503; *White v. Superior Court* (1990) 225 Cal.App.3d 1505, 1511; *Blair v. Superior Court* (1990) 218 Cal.App.3d 221, 225-226. The claim form here included the basic information necessary to acquaint defendant with the issues warranting investigation, and if defendant was genuinely confused, that issue was waived by defendant's failure to advise plaintiff accordingly. See Govt. Code §911. Plaintiff is entitled to have her claim form liberally construed, and here the liability is premises on an unleashed dog biting an unsuspecting invitee – whether the fence failed to stop it, or a picnic bench made the reach earlier – are secondary to the lack of a leash (and the lack of enforcement).

Demurrer to Fourth cause of action is **OVERRULED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

**IN RE: Thirty-Two Thousand Dollars (\$32,000.00) Currency of
the United States**

22CV45789

PETITIONER'S MOTION FOR FORFEITURE JUDGMENT

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar **shall** include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Based on petitioner's failure to include the required language, the motion is DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.